IN THE SUPREME COURT, STATE OF WYOMING

2026 WY 111

OCTOBER TERM, A.D. 2026

October 14, 2026

THE STATE OF WYOMING,	
Petitioner,	
v.	**S-26-0003**
MARK ANTHONY MARTINEZ,	
Respondent.	

Original Proceeding
Bill of Exceptions
District Court of Laramie County
The Honorable Robin S. Cooley, Judge

Representing Petitioner:

Keith G. Kautz, Attorney General; and Jenny L. Craig, Deputy Attorney General. Argument by Ms. Craig.

Representing Respondent:

Office of the State Public Defender: Patricia L. Bennett, Wyoming State Public Defender; Kirk A. Morgan, Chief Appellate Counsel;* and Sierra M. Soule, Assistant Appellate Counsel. Argument by Ms. Soule.

* An Order Substituting Kirk A. Morgan for Scott M. Guthrie was entered on March 31, 2026.

Before BOOMGAARDEN, C.J., and GRAY, FENN, JAROSH, and HILL, JJ.

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HILL, Justice.

[¶1] The State of Wyoming charged Mark Martinez with failure to register as a sex offender and eluding a police officer. Prior to trial, relying on *Osban v. State*, 2019 WY 43, 439 P.3d 739 (Wyo. 2019), the district court determined a violation of Wyoming Rule of Criminal Procedure 48 had occurred and dismissed the charges with prejudice. The State filed a Bill of Exceptions asking this Court to review the district court's actions. Having granted the State's Bill of Exceptions, we now sustain the bill and find the district court erred in dismissing the charges against Mr. Martinez.

ISSUES

[¶2] The Bill of Exceptions raises one issue, which we phrase as:

1) Did the district court err when it determined Mr. Martinez's right to a speedy trial under W.R.Cr.P. 48 was violated, requiring the charges against him to be dismissed with prejudice?

FACTS

[¶3] The State charged Mr. Martinez with one count of failure to register as a sex offender, in violation of Wyo. Stat. Ann. § 7-19-302(e), and one count of eluding a police officer, in violation of Wyo. Stat. Ann. § 31-5-225. Before being arraigned, Mr. Martinez filed a demand for speedy trial. At his arraignment on December 23, 2024, Mr. Martinez pleaded not guilty to the charges against him. In its criminal case management order, the district court noted Rule 48's 180-day trial deadline required Mr. Martinez to be tried by June 21, 2025. In compliance with this deadline, the court initially set Mr. Martinez's trial for April 7, 2025.

[¶4] Mr. Martinez's trial did not take place on April 7. The record indicates Mr. Martinez received a new attorney in early January. Thereafter, the initial trial date of April 7 was vacated and reset for May 13, 2025. The record is unclear why the April 7 date was vacated; however, the State contends in its Bill of Exceptions that defense counsel requested, and was granted, a continuance of the April 7 trial date.

[¶5] The trial also did not take place on May 13, 2025. The court vacated the May 13 date and reset trial for June 10, 2025. It is unclear why this date was vacated, but the State again contends it was on a motion for continuance by the defense. Regardless of why the first two trial dates were vacated, Mr. Martinez's trial was left scheduled for June 10, 2025—a date within the court's noted Rule 48 deadline of June 21, 2025.

[¶6] On May 31, 2025, ten days before the June 10 trial date, Mr. Martinez filed a motion to suspend the proceedings for a competency evaluation. Two days later, the district court

granted the motion and suspended the proceedings. When the court suspended proceedings on June 2, 2025, only nineteen days remained to meet the Rule 48 deadline.

[¶7] The Wyoming State Hospital performed the competency evaluation and filed its report with the district court. The district court held a hearing on September 2, 2025, and determined Mr. Martinez was competent to proceed to trial. Additionally, a new replacement attorney for Mr. Martinez made his first appearance at this hearing. Mr. Martinez's new attorney stated, "we're essentially ready for trial[] . . . but I'm going to ask the [c]ourt to make some rulings regarding jury instructions before trial because we need to know what our theory of defense is, if we're going to go to trial or not."

[¶8] Before the hearing concluded, the State asked about the placement of the case in the court's trial stack. In response, the district court asked the judicial assistant if the case was in the stack now, to which the assistant stated, "I can put it back November 12th." The judge replied, "November? We will look at it and preliminarily schedule that for the November 12th trial stack[.] . . . So that gives you an idea of how quickly your motions need to be filed and the pretrial memos." Neither Mr. Martinez nor the State objected to the November trial date at the hearing.

[¶9] Two days later, on September 4, 2025, the district court issued a written order setting trial for November 12, 2025. Again, neither Mr. Martinez nor the State objected to this trial date.

[¶10] Two scheduling conferences were held during October 2025. At the October 14 scheduling conference, the district court started off by noting, "a new 180 of December 3, 2025[,] in this one." It appears from the record this was the first time the court referenced a Rule 48 deadline of December 3. Also, counsel for Mr. Martinez stated, "ideally I'd liked a little more time but I think we can be ready [in] November[.]" Counsel for Mr. Martinez also stated the November 12 trial date would provide "a reasonable time to get ready."

[¶11] The second October scheduling conference occurred on October 27. Again, the district court began the conference by noting December 3, 2025, as the new Rule 48 deadline in the case. Both the State and Mr. Martinez indicated the November 12 trial date was still acceptable. The remainder of the discussion at this conference revolved around a potential defense Mr. Martinez's counsel had been working on.

[¶12] On November 6, 2025, the district court held a joint pretrial conference and motions hearing. At this conference, the State questioned the court's Rule 48 deadline of December 3. The State wanted to confirm the deadline included any delays caused by Mr. Martinez's changes in counsel and competency evaluation because the State was considering amending the charges. The district court believed the deadline was accurate but said it would make sure. Later that same day, the court emailed both parties to explain that after recalculating the speedy trial deadline, the court believed Mr. Martinez's Rule 48 deadline

had expired on September 21, 2025. The court requested written arguments addressing whether the case should be dismissed. The State and Mr. Martinez both provided written arguments, and both agreed the speedy trial deadline was actually September 21, 2025.

[¶13] After considering the parties' arguments, the district court declined to dismiss the case in an Order on Speedy Trial. The court stated it set the trial for November 12, 2025, because it was the earliest opportunity given the court's full trial docket. The court further noted how it would have been "practically impossible" to have Mr. Martinez's trial within nineteen days after proceedings resumed on September 2. The court concluded Mr. Martinez's case was properly continued beyond the September 21, 2025, deadline in the due "administration of justice."

[¶14] After the district court declined to dismiss the charges against him, Mr. Martinez filed a motion to dismiss for a Rule 48 violation. Mr. Martinez claimed Rule 48 was violated because the court did not provide notice of its intention to continue trial beyond the 180-day deadline before it did so. The court held a hearing to address this motion on November 12, 2025, the scheduled day of trial. This time, the court ruled in favor of Mr. Martinez and dismissed the charges against him with prejudice.

[¶15] The court made clear its belief that the circumstances of Mr. Martinez's case justified the continuance of trial beyond the 180-day Rule 48 deadline. However, the court believed, based on its interpretation of *Osban v. State*, it was required to dismiss the case because its justification for the continuance would be viewed as an impermissible retroactive justification due to the fact that its Order on Speedy Trial came after the Rule 48 deadline had expired. *Osban v. State*, 2019 WY 43, 439 P.3d 739 (Wyo. 2019). The court stated it was "confident that had its Order on Speedy Trial been entered prior to the expiration of the Defendant's speedy trial deadline, it would have been upheld[.]"

[¶16] Following the dismissal of charges, the State properly filed its Bill of Exceptions to obtain review of the district court's actions. The State also invites us to reconsider our majority holding in *Osban v. State*.

STANDARD OF REVIEW

[¶17] The State contends the district court erred when it determined Mr. Martinez's right to a speedy trial under W.R.Cr.P. 48 was violated and dismissed the charges against him. We review speedy trial claims de novo. *Person v. State*, 2023 WY 26, ¶ 24, 526 P.3d 61, 71 (Wyo. 2023) (citing *Vlahos v. State*, 2022 WY 129, ¶ 31, 518 P.3d 1057, 1066 (Wyo. 2022)).

DISCUSSION

[¶18] Rule 48 requires criminal charges to be brought to trial within 180 days after arraignment unless trial is continued pursuant to one of the rule's exceptions. W.R.Cr.P. 48(b)(2). If trial is not held or continued according to an exception, Rule 48 requires the case to be dismissed after 180 days. W.R.Cr.P. 48(b)(5).

[¶19] One exception in Rule 48 allows trial courts to continue trial past 180 days if the continuance is "[r]equired in the due administration of justice and the defendant will not be substantially prejudiced[.]" W.R.Cr.P. 48(b)(4)(B)(iii). If the trial court proposes such a continuance, the defendant must be given notice and an opportunity to object by showing in writing how the delay will prejudice the defense. W.R.Cr.P. 48(b)(4)(C). Rule 48 excludes from the 180-day timeline "[a]ll proceedings related to the mental illness or deficiency of the defendant[.]" W.R.Cr.P. 48(b)(3)(A).

[¶20] Mr. Martinez was arraigned on December 23, 2024, and initially Rule 48 required him to be tried by June 21, 2025. *See* W.R.Cr.P. 48(b)(2). When the district court suspended proceedings on June 2, 2025, only nineteen days remained until the 180-day deadline. *See id.* Because the proceedings were suspended for a competency evaluation, the time during the suspension is excluded from the 180-day deadline. *See* W.R.Cr.P. 48(b)(3)(A); *Castellanos v. State*, 2016 WY 11, ¶¶ 53–59, 366 P.3d 1279, 1295–97 (Wyo. 2016) (excluding from its 180-day calculations, under W.R.Cr.P. 48(b)(3)(A), the time when proceedings were suspended for a competency evaluation). Given this, when proceedings resumed on September 2, 2025, the court was required to either try Mr. Martinez within nineteen days or continue the trial in accordance with Rule 48. *See* W.R.Cr.P. 48(b)(2). Because no trial was held, the dispositive question here is whether the court properly continued the trial in accordance with W.R.Cr.P. 48(b)(4). We hold the court properly continued the trial and, therefore, no violation of Rule 48 occurred necessitating dismissal.

A. *Osban* is Not Controlling in this Instance

[¶21] The State argues the district court erred in relying on *Osban v. State*, 2019 WY 43, 439 P.3d 739 (Wyo. 2019), when it found a violation of Rule 48 occurred. Additionally, the State asks us to reconsider our majority holding in *Osban*. Because we find *Osban* distinguishable from the present case, we decline the request.

[¶22] In *Osban*, Mr. Osban violated his bond by testing positive for methamphetamine, and the district court issued a warrant for his arrest eleven days before his trial date. *Id.* at ¶ 5, 439 P.3d at 741. Mr. Osban turned himself in to law enforcement four days before his trial date and informed the district court he was in custody. *Id.* At that point, the court informed Mr. Osban his trial date had already been vacated by the court. *Id.* The court had not provided any notice it was vacating the trial date before it did so. *See id.* Mr. Osban's trial was later reset to a date beyond the Rule 48 deadline. *Id.* In the order resetting

trial, the court stated it vacated Mr. Osban's trial date because he had "absconded in violation of his bond[.]" *Id.*

[¶23] Before his new trial date, but after Rule 48's deadline expired, Mr. Osban moved to dismiss the charges against him, arguing a violation of Rule 48. *Id.* The district court denied the motion. *Id.* The court ruled that because Mr. Osban had a warrant for his arrest, he was unavailable for trial under W.R.Cr.P. 48(b)(6)[1] and, therefore, Rule 48 was not violated when trial was continued past the 180-day deadline. *Osban*, ¶ 5, 439 P.3d at 741. The court also "mentioned" the trial stack required the continuance in the due administration of justice. *Id.*

[¶24] After being convicted, Mr. Osban appealed to this Court and argued his right to a speedy trial under Rule 48 was violated. *Id.* at ¶¶ 6–7, 439 P.3d at 741–42. Mr. Osban claimed Rule 48 was violated when the district court sua sponte vacated his trial date and reset it after the 180-day deadline without providing any notice or opportunity to object. *Id.* at ¶ 7, 439 P.3d at 741.

[¶25] On appeal, this Court explained the district court continued the trial because it believed Mr. Osban's warrant made him "unavailable" under W.R.Cr.P. 48(b)(6). *Osban*, ¶ 9, 439 P.3d at 742. We then concluded Mr. Osban was not "unavailable" because the warrant was not issued in response to him absconding and he had not actually missed any proceedings. *Id.* Thus, we held the district court's actual justification for continuing trial was improper under Rule 48. *See id.*

[¶26] We then addressed the State's argument that the continuance was required in the "due administration of justice" under W.R.Cr.P. 48(b)(4)(B)(iii). *Osban*, ¶ 10, 439 P.3d at 742–43. We disagreed with the State's argument for two reasons. *Id.* at ¶ 11, 439 P.3d at 743. First, we held it was an impermissible retroactive justification for the district court to later rely on the "due administration of justice" provision of Rule 48. *Id.* While not explicitly stated, it is apparent this holding was based on our understanding the court continued the trial because it thought the defendant was "unavailable." *See id.* at ¶¶ 5, 9, 11, 439 P.3d at 741–43. Only after the trial had been reset and the court was addressing the defendant's motion to dismiss did the court "mention[]" the due administration of justice. *Id.* at ¶ 5, 439 P.3d at 741. Even then, it was a passing remark to the court's primary "unavailable" justification. *See id.* Our understanding is further supported by the fact the district court did not follow the procedures required when a continuance is granted in the due administration of justice. *See id.* at ¶¶ 10–13, 439 P.3d at 742–43. As such, we found the district court offered an impermissible retroactive justification because it operated under one provision of Rule 48 (Rule 48(b)(6)) when it continued trial, and then

[1] W.R.Cr.P. 48(b)(6) allows a case to be continued if the defendant is "unavailable for any proceeding at which the defendant's presence is required[.]"

later relied on a different provision (Rule 48(b)(4)(B)(iii)) to justify the delay. *See id.* at ¶¶ 5, 9, 11, 439 P.3d at 741–43.

[¶27] The second reason we disagreed with the State's argument was the district court did not provide notice of the continuance as required by W.R.Cr.P. 48(b)(4)(C). *Osban*, ¶¶ 10–13, 439 P.3d at 742–43. Our analysis focused on how the district court sua sponte vacated Mr. Osban's trial date which was within the Rule 48 deadline without notifying him beforehand. *Id.* at ¶ 13, 439 P.3d at 743. Because the court had not provided any notice before vacating the defendant's trial, we held the court had "violated the notice and opportunity to be heard purpose of subsection (b)(4)(C)." *Id.*

[¶28] The facts that drove our analysis in *Osban* are absent in Mr. Martinez's case. First, the context in which we found an impermissible retroactive justification in *Osban* is not the same as Mr. Martinez's case. In *Osban*, the district court relied on the "unavailable" provision of Rule 48(b)(6) when it continued the trial. *See id.* at ¶¶ 5, 9, 11, 439 P.3d at 741–43. Only later did the court and the State try to justify the continuance with the "due administration of justice" provision of Rule 48(b)(4)(B)(iii). *See id.* It was this later change in justification for the continuance we found problematic. *See id.* By contrast, the record makes clear the court in Mr. Martinez's case was mistaken about the time remaining to meet the 180-day deadline, but it was ultimately always operating under the due administration of justice provision of Rule 48(b)(4)(B)(iii). The court's Order on Speedy Trial was not the impermissible retroactive justification between different provisions of Rule 48 present in *Osban*.

[¶29] Additionally, in *Osban*, the district court did not give Mr. Osban notice before it vacated the trial date that had been set within the Rule 48 deadline. *Id.* at ¶ 5, 439 P.3d at 741. This fact was the focus of our analysis and dictated our holding. *See id.* at ¶¶ 10–13, 439 P.3d at 742–43. By contrast, Mr. Martinez had notice his June 10, 2025, trial date would be vacated because he asked the court to suspend the proceedings for a competency evaluation. Further, Mr. Martinez received the court's order suspending the proceedings. He was aware the original trial date would have to be reset and that there would be little time within the 180-day deadline to reset the trial date. He had notice of and was involved in both the suspension of the original trial and the re-setting. Accordingly, the present case is distinguishable from *Osban*.

[¶30] Thus, the reasoning of *Osban* is inapplicable to the facts and circumstances of this case, and it is not controlling. We, therefore, do not reach the question of whether *Osban* should be overruled and move to whether the district court violated Rule 48 when it reset Mr. Martinez's trial.

B. The District Court Properly Continued the Trial

[¶31] Initially, the State essentially claims the trial was continued on the defense's motion under W.R.Cr.P. 48(b)(4)(A) because Mr. Martinez requested a suspension of proceedings for a competency evaluation. We disagree. A district court is not continuing a trial on the "motion of defendant" when it resets a trial date after proceedings have been suspended for a competency evaluation. Instead, we view these actions as the court continuing trial on its own motion. We have previously said, "when a case is set beyond the 90-day limit, it is done so on the court's own motion [for continuance.]"[2] *Cook v. State*, 631 P.2d 5, 10 (Wyo. 1981) (citing *Robinson v. State*, 627 P.2d 168, 172 (Wyo. 1981)). While this statement addressed a former district court rule, we find its logic applicable to Rule 48. Under Rule 48, a resetting after a competency evaluation that is past the 180-day deadline is a continuance by the court if it is not brought about by some other motion of the defendant or the State. Given this, when the district court in Mr. Martinez's case reset trial for November it was doing so on its own motion for continuance, not Mr. Martinez's.

[¶32] The State also argues the district court erred when it determined Rule 48 was violated because the November trial date was properly set in the due administration of justice. Mr. Martinez argues the district court did not comply with the requirements of W.R.Cr.P. 48(b)(4), primarily the notice requirement, when it reset the trial for November. Specifically, he argues the court failed to properly continue the trial because it never explicitly stated a continuance beyond the 180-day deadline was required in the due administration of justice. We find the district court properly continued the trial on this basis.

[¶33] Two cases where this Court addressed resetting a trial date after proceedings were suspended for a competency evaluation are instructive here. *Rodgers v. State*, 2011 WY 158, 265 P.3d 235 (Wyo. 2011); *Castellanos v. State*, 2016 WY 11, 366 P.3d 1279 (Wyo. 2016). Because these two cases have factual circumstances similar to Mr. Martinez's case, we will use them to guide our analysis.

[¶34] In *Rodgers*, the defendant's trial was set for the same day his Rule 48 deadline would expire. *Rodgers*, ¶ 30, 265 P.3d at 243. This trial setting complied with W.R.Cr.P. 48(b). *Id.* However, five days before his trial date, the defendant moved to suspend the proceedings for a competency evaluation. *Id.* at ¶¶ 13, 30, 265 P.3d at 239, 243. The district court granted the motion and suspended the proceedings that same day. *Id.* After the defendant was found competent to proceed, the court set his new trial date beyond the 180-day deadline. *Id.* at ¶¶ 13, 29, 265 P.3d at 239, 242–43. The defendant was later convicted and appealed his conviction to this Court. *Id.* at ¶ 14, 265 P.3d at 239.

[2] The statement addressed what was, at the time, Rule 22 of the Uniform Rules for the District Courts of the State of Wyoming. *Cook*, 631 P.2d at 10. The language and structure of Rule 48 is very similar to this former district court rule.

[¶35] On appeal, we addressed "whether the trial was properly continued beyond the express 180-day mandate of W.R.Cr.P. 48(b)." *Rodgers*, ¶ 29, 265 P.3d at 243. Our analysis focused on the fact that the proceedings were suspended with only five days remaining in the 180-day deadline. *See id.* at ¶ 30, 265 P.3d at 243. Given the judicial processes that need to occur before trial, we found it would have been a "practical impossibility" for the defendant's trial to be held within those remaining five days. *Id.* We stated Rule 48 anticipates such a situation because it allows for continuances required in the due administration of justice if the defense is not prejudiced. *Id.* (citing W.R.Cr.P. 48(b)(4)(B)(iii)). Having found no prejudice, we held that "under the facts of this case, the continuance of [the defendant's] trial was in compliance with Rule 48(b)." *Rodgers*, ¶ 30, 265 P.3d at 243. Importantly for the present analysis, we held this way even though "there is no indication the setting [of trial beyond the 180 days] was preceded by a motion to continue or accompanied by a specific finding that the setting was in the due administration of justice." *Castellanos*, ¶ 65 n.7, 366 P.3d at 1298 n.7 (discussing *Rogers*, ¶ 13, 265 P.3d at 239).

[¶36] In *Castellanos*, after the defendant was arraigned, the district court suspended the proceedings for a competency evaluation. *Id.* at ¶¶ 14, 28–29, 366 P.3d at 1285–86, 1290. While the proceedings were suspended, the court held a scheduling hearing and set a new trial date. *Id.* at ¶¶ 32–36, 366 P.3d at 1290–92. When the court set this new trial date it did not make a formal motion to continue the trial or explicit findings that a continuance was required in the due administration of justice. *See id.* at ¶¶ 35, 60, 366 P.3d at 1291–92, 1297. The court later lifted the suspension of proceedings, and the defendant was eventually convicted at trial. *Id.* at ¶¶ 39, 47, 366 P.3d at 1293–94.

[¶37] On appeal, the defendant claimed his right to a speedy trial was violated under Rule 48(b). *Castellanos*, ¶ 48, 366 P.3d at 1294. The defendant argued, in part, that the time between when proceedings resumed and the trial date the court set during the suspension of proceedings must be counted against the 180-day deadline. *Id.* at ¶ 60, 366 P.3d at 1297. The defendant based this argument on the fact that the district court never made a formal motion to continue or explicit findings that a continuance was required in the due administration of justice when it set the new trial date. *Id.*

[¶38] We disagreed with the defendant's argument and stated that, in the context of Rule 48, this Court has not "impose[d] a set of specific procedural requirements to which a court must adhere in re-setting a trial date[.]" *See id.* at ¶¶ 60, 63, 366 P.3d at 1297–98. We explained our concern was not with the formalities a court follows in setting a new trial date, but rather with the court's due regard for Rule 48's requirements and the grounds on which a trial may be continued. *See id.* at ¶¶ 63–64, 366 P.3d at 1298. Based on this principle, we found the district court showed due regard for Rule 48, primarily because it set trial for the soonest possible date allowed by its docket and pretrial requirements. *See id.* at ¶¶ 35, 64, 366 P.3d at 1291–92, 1298.

[¶39] We stated, "[a]s a practical matter, a trial cannot be set to begin the moment a suspension of proceedings is lifted." *Id.* at ¶ 65, 366 P.3d at 1298. Additionally, we discussed and applied the *Rodgers* case. *Id.* In doing so, we pointed out there is no indication that the trial setting in *Rodgers* was preceded by a formal motion to continue or explicit findings that the continuance was required in the due administration of justice. *Id.* at ¶ 65 n.7, 366 P.3d at 1298 n.7 (citing *Rodgers*, ¶ 13, 265 P.3d at 239). Lastly, this Court held that the trial was continued in the due administration of justice despite there being no formal motion to continue or explicit administration of justice findings. *Castellanos*, ¶ 66, 366 P.3d at 1298.

[¶40] Applying the above two cases to the facts of Mr. Martinez's case shows the district court properly continued the trial in the due administration of justice. First, the present case is like *Rodgers* because there were only nineteen days remaining in the 180-day deadline when proceedings resumed in Mr. Martinez's case. *See Rodgers*, ¶ 30, 265 P.3d at 243. Similar to *Rodgers*, it would have been a "practical impossibility" for Mr. Martinez's trial to be held within the remaining nineteen days. *Id.*; *see also Castellanos*, ¶ 65, 366 P.3d at 1298 ("As a practical matter, a trial cannot be set to begin the moment a suspension of proceedings is lifted."). The district court needed to subpoena witnesses, summon a jury panel, potentially hold a pretrial conference, and address the jury instruction issues defense counsel alluded to at the September hearing. In addition, the court still had to manage the other cases already set for trial in September. Given the practical issues scheduling a trial within the remaining nineteen days presented, we follow *Rodgers* and hold that a continuance beyond the 180-day deadline was required in the due administration of justice here. *Rodgers*, ¶ 30, 265 P.3d at 243.

[¶41] As in *Castellanos* and *Rodgers*, the district court in Mr. Martinez's case did not make a formal motion to continue or explicit findings a continuance was required in the due administration of justice. *Castellanos*, ¶ 60, 366 P.3d at 1297; *Rodgers*, ¶ 13, 265 P.3d at 239. Nevertheless, as we did in *Castellanos*, we also find the court in Mr. Martinez's case acted with due regard for Rule 48's requirements despite its lack of explicitness. *See Castellanos*, ¶ 64, 366 P.3d at 1298. At the September hearing, the judicial assistant implied that November was the earliest date a trial could be set when she stated she could put the case back on the November 12 stack. Further, the court took two days to consider the November date before officially setting trial.[3] Based on these facts, the record supports the conclusion the court acted with due regard for Rule 48 by setting trial for the earliest possible date given its trial docket and the pretrial requirements even though it was mistaken about when the 180-day deadline expired.

[¶42] Additionally, while the district court did not explicitly say it was continuing trial past the 180-day deadline, we find it gave proper notice of the continuance. At the

[3] The court later confirmed November was the earliest possible date because of the stacked trial settings in September and October.

September hearing, the court notified both parties it was proposing a November trial date. The court said this preliminary setting would give the parties an idea of when they needed to file their motions. The court also waited two days before it entered its order setting trial for November. These actions gave sufficient notice of the court's proposed continuance and an opportunity for Mr. Martinez to object and show prejudice. "It is the responsibility of the court, counsel and the defendant to insure that the defendant is timely tried." W.R.Cr.P. 48(b)(1). Given the defendant's shared responsibility to meet Rule 48's speedy trial requirements, Mr. Martinez also should have recognized the November trial date was beyond the 180-day deadline and objected if he was concerned about the date.

[¶43] Even so, trial can only be continued in the due administration of justice if the defendant is not substantially prejudiced by the delay. W.R.Cr.P. 48(b)(4)(B)(iii). Under these circumstances, we do not find the November trial setting caused any prejudice to Mr. Martinez. At the September hearing, Mr. Martinez's new counsel was not sure what his theory of defense was or if Mr. Martinez would even be going to trial. In October, Mr. Martinez's counsel said they would have liked more time before trial but they could be ready by the November trial date. Additionally, Mr. Martinez's counsel was working on establishing a potential defense at the November 6 conference, six days before the scheduled trial date. These facts do not show any prejudice, or that Mr. Martinez actually objected to the new setting.

[¶44] Having determined the continuance was required in the due administration of justice, the court acted with due regard for Rule 48's requirements, and no prejudice resulted from the delay, we hold the district court properly continued the trial in accordance with Rule 48. As such, we find the district court erred when it determined Rule 48 had been violated and dismissed the charges against Mr. Martinez.

[¶45] This Court recognizes the facts of the present case are not ideal. With this opinion we do not condone the mistake the district court made in calculating the 180-day deadline, and we encourage courts to be more careful in this regard. While we hold, as we have before, that explicit "due administration of justice" findings are not required, courts should put the reasons justifying a continuance on the record to avoid an adverse ruling on appeal. *See Kleinschmidt v. State*, 913 P.2d 438, 440 (Wyo. 1996) ("[T]his type of claim based solely on W.R.Cr.P. 48 would be afforded little weight if the trial court would place on the record the reason for the continuance beyond the 120-day period. Technically, however, the formal action is not required[.]").

[¶46] We will continue to find violations when a court callously disregards Rule 48. *See, e.g.*, *Detheridge v. State*, 963 P.2d 233, 236 (Wyo. 1998); *but see Germany v. State*, 999 P.2d 63, 67 (Wyo. 2000) ("The facts of this case do not evince the callous disregard of the speedy trial rule illustrated in *Detheridge*."). However, we do not see a flagrant disregard of Rule 48 in Mr. Martinez's case. To illustrate, the court explicitly noted the 180-day deadline in its case management order, set three trial dates within the deadline, and stated

what it believed to be the 180-day deadline at each October conference. While the district court made a mistake in calculating the 180-day deadline after proceedings resumed, it was still concerned with adhering to Rule 48 and attempted to do so.

CONCLUSION

[¶47] The district court erred when it determined Mr. Martinez's right to a speedy trial under W.R.Cr.P. 48 was violated and dismissed the charges against him. The State's Bill of Exceptions is sustained.